



Eagers – Audi Melbourne & Audi Richmond

MN-05012

Phase 1 Determination

Acquisition may be put into effect

5 May 2026

1. Determination and statement of reasons

Notified acquisition	Eagers Vic Pty Ltd's (Eagers) proposed acquisition of two Audi dealerships, as described below, from Zagame Automotive Group Pty Ltd (Zagame) (together, the Parties). The Audi dealerships are: • Audi Centre Melbourne, 501 Swanston Street, Melbourne 3000 (Audi Melbourne) • Audi Richmond, 408-410 Swan Street, Richmond 3121 (Audi Richmond) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Eagers, is a subsidiary of Eagers Automotive Limited. Eagers Automotive Limited operates dealerships which supply new and used motor vehicles, with a portfolio of approximately 50 automotive brands. Eagers Automotive Limited operates in each state and territory of Australia, including as Eagers in Victoria. In Victoria, Eagers has 29 dealerships, 12 of which supply automotive brands that offer similar prices and features to Audi (including but not limited to Mercedes-Benz, BMW, Volvo, Land Rover, Volkswagen). Eagers does not currently supply Audi vehicles. The targets, Audi Melbourne and Audi Richmond, are currently owned and operated by Zagame. Zagame operates dealerships in the Melbourne area and in Adelaide, with a portfolio of 16 automotive brands. In addition to Audi Melbourne and Audi Richmond, Zagame owns and operates three further Audi dealerships in Brighton, Mornington and Essendon Fields. Audi Melbourne and Audi Richmond do not supply used vehicles.
Overlap between the parties	Horizontal overlap in the retail supply of new cars in greater Melbourne.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from prior matters, and publicly available information

	The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • There is no horizontal overlap between the Parties in relation to the supply of Audi vehicles in greater Melbourne. • In relation to the broader supply of new vehicles in greater Melbourne, and more narrowly in relation to the supply of automotive brands that offer similar prices and features to Audi, the increase in Eagers' share of supply is expected to be small. • Eagers would likely continue to compete with a large number of alternative automotive dealerships in greater Melbourne. This includes seven alternative Audi dealerships in greater Melbourne.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**